

Sunita Devi v. Ravishankar Gupta, Assistant Engineer

High Court of Judicature at Allahabad · Single Judge · 8 September 2021 · Contempt Application (Civil) No. 1341 of 2020 · **Licensee directed to provide technical hands, complete pole and line work, and energize.**

HEADNOTE

In civil contempt to enforce a writ direction that the electricity department give a connection under Chapter IV of the U.P. Electricity Supply Code, 2005, the Allahabad High Court held that issuing installation materials does not finish the licensee's duty where the consumer has no technical hands. It directed that if the applicant applied within two weeks for a technical hand, the opposite party must provide one within a week, complete pole installation and line stretching within ten days, and energize within three days thereafter.

FACTUAL SUMMARY

Sunita Devi filed civil contempt against an Assistant Engineer alleging disobedience of a writ order directing an electricity connection under Chapter IV of the U.P. Electricity Supply Code, 2005. The department said a new incumbent had taken charge and that installation materials had been issued, but the line was not energized because she had not completed the work. She said she lacked technical hands and would pay if the department outsourced them. A later sitting took a compliance affidavit on record and granted time to reply.

REUSABLE CONSTRUCTIONS

1. A licensee does not discharge a Chapter IV duty to give a new connection merely by handing installation materials to the consumer; if the consumer lacks technical hands, the licensee must supply the workforce, complete pole and line work, and energize. ¶ 8.9.2021

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4

new connection — installation and energization

HOLDING

Where a writ court has directed a new connection under Chapter IV of the U.P. Electricity Supply Code, 2005, and the licensee has issued installation materials but the consumer cannot erect poles and stretch the line for want of technical hands, the licensee must, on the consumer's application, provide the technical hands, complete pole installation and line stretching, and energize the line within the time fixed by the Court.

¶ 8.9.2021

FLAG Court referred to Chapter IV of the Supply Code without citing a numbered clause.

PRINCIPLE TAGS

new-connection-licensee-must-complete-installation Applied to enforce a Chapter IV writ connection: handing over materials was not enough; the electricity department had to provide technical hands, install poles and stretch the line, and energize. ¶ 8.9.2021

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE OPPOSITE PARTY WAS GUILTY OF WILFUL CONTEMPT WARRANTING PUNISHMENT

Compliance affidavit taken on record; applicant granted time to reply; listed further. ¶ 26.10.2021

NOT DECIDED — IMPLEADMENT OF THE NEW INCUMBENT TO THE OFFICE OF OPPOSITE PARTY

A week's time was granted to file an impleadment application; no order on impleadment appears in the extract.

¶ 8.9.2021

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.